

**Before the
FEDERAL MARITIME COMMISSION**

Docket No. 2010 (F)

Simple Forwarding, Inc.

v.

China United Lines Ltd. *aka* CULines and Norton Lilly International

Motion to Strike Respondent CULines' December 16 Response to the Amended Complaint

Complainant Simple Forwarding Inc., by and through its Representative, respectfully submits this Motion to Strike Respondent CULines' December 16, 2024 Response to the Amended Complaint.

INTRODUCTION

Complainant files this Motion seeking:

1) the striking of Respondent CULines Response to the Amended Complaint; on grounds that Ms. Ashley Xu is acting as an unauthorized Representative on behalf of Respondent Norton Lilly.

1. Background

On December 16 2024, Ms. Ashley Xu filed a Response to the Complainant's Amended Complaint on Behalf of CULines and Norton Lilly International.

2. Legal Standard

Under Federal Rule of Civil Procedure 12(f);

“MOTION TO STRIKE. The court may strike from a pleading an insufficient defense or any redundant, immaterial, impertinent, or scandalous matter.”

CULines Response should be stricken as it is an insufficient defense and improper.

3. Arguments

Complainant is unaware of the filing of any Notice of Appearance by Ms. Xu on behalf of CULines, as is required by 46 CFR §502.23 (a) and (c).

Complainant is additionally unaware of any filing by Ms. Xu, that indicates she is qualified or authorized to Represent or act on behalf of any Party to any proceedings before the Commission except as allowed by 46 CFR §502.27 (e), which permits her to act on:

“...her own behalf or on behalf of any corporation, partnership, or association of which he or she is a partner, officer, or regular employee.”

Per 46 CFR §502.26 Ms. Xu must be:

“...admitted to practice before the Federal courts or before the courts of any State or Territory of the United States...”

or Licensed by the Commission pursuant to 46 CFR §502.27 in order to Practice before the Commission. Ms. Xu has not provided any documentation or notifications that she is Duly Authorized under either of these Rules to Represent any party; most notably Norton Lilly International, who is a separately named Party to the Amended Complaint and a separate legal entity from CULines.

Complainant is unaware of the filing of any Notice of Appearance by Ms. Xu on behalf of Norton Lilly International, as is required by 46 CFR §502.23 (a) and (c) which indicates how and why she is Authorized to act in a Representative capacity on their behalf.

As such, Ms. Xu’s Response on behalf of CULines and Norton Lilly International is Procedurally Improper and should be stricken from the Record.

4. Relief Requested

Complainant respectfully requests that:

- (a) Ms. Xu be compelled to file a Notice of Appearance on behalf of CULines, indicating how she is authorized to act in a Representative capacity on their behalf.
- (b) Ms. Xu be compelled to file a Notice of Appearance on behalf of Norton Lilly International, indicating how she is authorized to act in a Representative capacity on their behalf.
- c) Respondent CULines December 16, 2024 Response be Stricken from the Record with an Order requiring the filing of procedurally proper separate Responses by Respondents CULines and Norton Lilly International.

DUTY TO CONFER

Pursuant to 46 C.F.R. § 502.71(a), Complainant attempted to confer with Respondents CULines and Norton Lilly International, but did not receive an answer from either Respondent.

I, Sara Dandan, have been admitted to general practice before the Federal Maritime Commission. I respectfully submit this Combined Motion on behalf of Complainant Simple Forwarding Inc.

Sara Dandan

FourOneOne LLC

2501 Chatham Rd, Suite 8082

Springfield, IL 62704

Email: sara@fouroneone.io

Phone: 630-286-9846

Signature:  _____

Date: 12/22/2024

CERTIFICATE OF SERVICE

I certify that on December 22nd, 2024, a true and current copy of the foregoing was filed via electronic mail with the Federal Maritime Commission and the following known parties of record for the Respondents:

Mike Ausmus

Senior Manager Liner Services, Norton Lilly International

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Sara Dandan

